

RESPONSE TO NOTICE OF BREACH CLOUDAXIS SOLUTIONS

Reference: RESP-CA-2026-05-02

Date: May 2, 2026

From: CloudAxis Solutions SARL

To: TechVenture SARL

Subject: Response to formal breach notice NOB-TV-2026-04-30.

1) Infrastructure Migration Position

CloudAxis acknowledges that TechVenture was not given advance written notice of the April 26 migration. CloudAxis states this was an emergency security patch migration required to address a zero-day vulnerability discovered on April 25. CloudAxis claims force-majeure cyber-threat provisions may apply and requests further discussion of the applicability of the planned maintenance clause.

2) SLA Availability Position

CloudAxis accepts that platform availability in April fell below the 99.7% SLA target. CloudAxis proposes to apply a service credit equivalent to 15% of the monthly subscription fee per the SLA credit schedule in the agreement. CloudAxis disputes that the outage constitutes a material breach warranting termination, noting the agreement requires a pattern of two consecutive months below target before termination rights are triggered.

3) P1 Response Position

CloudAxis denies a formal P1 breach. CloudAxis states that internal escalation occurred within 4 hours of ticket acceptance but that the communication was not externally visible. CloudAxis offers to review ticket escalation protocols.

4) Data Loss Position

CloudAxis confirms data loss of approximately 18 hours of incremental data (not 24 hours as TechVenture claims). CloudAxis states that backup restoration recovered some of the April 25 payroll records. A full reconciliation report will be provided by May 8, 2026.

5) Data Breach Notification Position

CloudAxis disputes that its April 28 notification was outside the 24-hour window. CloudAxis states the clock began when data loss was confirmed, not when the outage began. CloudAxis has engaged external legal counsel on this point.

6) Commercial Proposal

CloudAxis offers the following to resolve the dispute without escalation:

- Service credit of 15% of April subscription (5,175 TND) applied to May invoice
- Waiver of May overuse compute charges estimated at 2,100 TND
- Complimentary professional services day (850 TND value) for data reconciliation
- Commitment to provide disaster recovery plan update by May 12, 2026

CloudAxis requests that TechVenture hold the May 9 executive call before deciding on termination to explore a structured resolution path.

Deadline for TechVenture response to this proposal: May 6, 2026 at 17:00.